revolution that has been taking place for decades in the UK and the wider world.

We can see this very clearly at the United Nations. The UN is supposedly committed to global peace and justice. Yet the UN Human Rights Council, like its predecessor the UN Commission on Human Rights, is dominated by human rights abusers. These rogue states and tyrannical regimes cynically use the language of human rights to protect themselves against criticism of their own abuses, and also to manipulate and paralyse the west. The big question, though, is how they are allowed to get away with it. How can the world have allowed human rights to be turned into such a travesty?

The answer is that the concept of human rights itself has been hijacked, turning international law into a vehicle for injustice. The human rights codified into international conventions are not fundamental or universal at all. They are instead a highly contingent formula for groups to exercise power over other groups, courtesy of a judiciary all too keen to play politics dressed up as law. Far from protecting western civilisation, human rights doctrine has turned into its potential nemesis.

Drafted in the wake of the second world war, the International Convention on Human Rights was an attempt to lay down a set of principles to ensure that totalitarianism would never deface Europe again. In the shadow of fascism and Stalinism, its original aim was to protect the individual from the state.

The very act of codifying human rights, however, changed them radically. Codification limits liberty. The purest form of liberty is to be found in the English common law under which, broadly, everything is permitted unless it is prohibited. Codifying human rights turned this upside down. It replaced the negative liberty of English common law, or freedom *from*, by positive liberty, freedom *to*.

As Isaiah Berlin pointed out, positive liberty leads to tyranny. It makes what is not permitted forbidden and gives power to the judges to arbitrate the distinction. Its values are not universal but contingent on political choices. Almost every right is balanced against a contrary right: free speech against privacy, family life against security. So one person's rights diminishes the rights of another.

It also detaches rights from the context that gives them meaning. Rights can no more be defined and encapsulated than can character. Just as character derives from something beyond itself, so human rights depend on something beyond themselves. That something is duty. Duties precede rights. Rights are implicit in the discharge of duty. Without duty, rights become wants, and then entitlements, and then politicised demands.

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